

temporarily restrict, block, or cordon off the area surrounding the ice freezer while large pallets of ice were being moved, handled, and stocked in an area open to customers; and chose to place a floor mat in front of the ice freezer that did not extend far enough to cover the surrounding area where pallets of ice were moved, handled, and stocked, and where it was foreseeable that water would reach the floor. Further, Plaintiff pleads in the proposed FAC that Defendant's officers, directors, or managing agents had advance knowledge of, authorized, adopted, approved, or ratified the policies, practices, customs, and omissions alleged. Based on the foregoing, it appears the FAC states facts that are sufficient to support a claim for punitive damages. (*Foxborough v. Van Atta* (1994) 26 Cal.App.4th 217, 230.)

15. *Cervantes v. Aldama, et al*, Case No. CIVSB2619697
Plaintiffs' Motion to Expunge Pendency of Action
8/31/26, 9:00 a.m., Dept. S-17

Tentative Rulings

As to Requests for Judicial Notice: The Court would **GRANT** notice of the 2024 quitclaim deed. (Aldama Decl., Exh. A.) However, the Court would **DENY** the request for notice of the title report.

As to Objections: The Court would **SUSTAIN** the objection to Defendant's evidence offered on reply.

As to the Motion: The Court would **GRANT**.

Case Summary

In this case, Plaintiff alleges he purchased the subject property in 2025 using his own money but using the name and credit of Defendant's late husband. (Compl., ¶11.) Thus, Plaintiff alleges that the property was held in an informal trust in the name of Defendant's late husband for the purpose of maintaining it for Plaintiff's benefit. However, Defendant's late husband subsequently transferred the property to himself and Defendant. Following his passing, Defendant listed the property for sale. As such, Plaintiff filed suit on June 30, 2026, alleging (1) quiet title; (2) slander of title; (3) cancellation of instrument; (4) constructive trust; (5) declaratory relief; and (6) injunctive relief.

Statement of Law

A party who asserts a real property claim may record a notice of pendency – or a *lis pendens* – in which that real property claim is alleged. (Code Civ. Proc., § 405.20.) A real property claim means the causes of action in a pleading, if meritorious, would affect title to or the right of possession of a specific real property. (Code Civ. Proc., § 405.4.)

A *lis pendens* may be ordered removed from the record if (1) the complaint does not contain a real property claim [Code Civ. Proc., § 405.31]; (2) the plaintiff cannot establish the probable validity of his claim by a preponderance of the evidence [Code Civ. Proc., § 405.32]; (3) claim has probable validity, but adequate relief for the claimant can be secured by an undertaking [Code Civ. Proc., § 405.33]; or (4) there was a defect in service or filing. (Code Civ. Proc., § 405.23). The party opposing the motion, i.e., the claimant, bears the burden of proof the complaint contains a real property claim and that there is a probability of prevailing on that real property claim. (Code Civ. Proc., § 405.30.)

Analysis

Quiet Title – At issue here is whether Plaintiff has title and the basis of his alleged title. The parties do not dispute that Defendant has legal title to the property, and Plaintiff never had legal title. Rather, Plaintiff claims that he has equitable title.

“The owner of the legal title to property is presumed to be the owner of the full beneficial title. This presumption may be rebutted only by clear and convincing proof.” (Evid. Code, § 662.) “[T]he general rule is that the holder of equitable title cannot maintain a quiet title action against the holder of legal title. An exception exists “when legal title has been acquired through fraud.” In that case, available “remedies include quieting title in the defrauded equitable title holder’s name and making the legal title holder the constructive trustee of the property for the benefit of the defrauded equitable titleholder.” (*Liberty National Enterprises, L.P. v. Chicago Title Ins. Co.* (2013) 217 Cal.App.4th 62, 81, citation omitted.)

Plaintiff states that he and Defendant’s now-deceased husband (Ray) had an agreement that they would use Ray’s name and credit to purchase the property and that “as soon as [Plaintiff] could[, Plaintiff] would put the Property solely in [his] name.” (Cervantes Decl., ¶2.) Plaintiff states he lived in the home from 2007 to 2015, and then from 2020 to February 2025, and he paid the mortgage, taxes, and insurance while he lived there. (Cervantes Decl., ¶¶10-12.) Plaintiff states that when he moved out in 2015, he rented the property to his mother and then a family friend rented the property for three years. (Cervantes Decl., ¶10.) Plaintiff is not clear whether the family friend rented the property from him or from Ray but, because Plaintiff says he paid the mortgage, taxes, and insurance while he lived in the home, Plaintiff shows no evidence that he paid the costs of ownership from 2015 to 2020 and from early 2025 to the present. Plaintiff additionally states that he made more than \$100,000 in improvements to the property. (Cervantes Decl., ¶9.)

As to fraud, Plaintiff states that in March 2024, Ray titled the property in his and Defendant’s names without Plaintiff’s knowledge, consent, or permission. (Cervantes Decl., ¶14.) When Plaintiff confronted him about the title, Ray said that he did not put Defendant’s name on the house. (Cervantes Decl., ¶15.) Plaintiff also states that Ray said he would have to talk to Defendant before putting the property in Plaintiff’s name and that Defendant “kept him from cooperating.” (Cervantes Decl., ¶11.)

In addition to his own declaration, Plaintiff submits seven declarations from family members and friends who attest to their familiarity with the agreement and their understanding that Plaintiff owned the property. Many of the declarations say, “I have personal knowledge of, and am familiar with [the] agreement with respect to the Subject Property because I was present for actions taken by [Plaintiff], and for discussions, concerning the Property, involving [Plaintiff,] [Ray,] and various other family members.” (Colunga Decl., ¶2; Stella Aldama Decl., ¶2; Jasso Decl., ¶2; and Rangel Decl., ¶2.)

Here, however, Plaintiff never states he made a promise to always pay the mortgage. He states that Ray asked Plaintiff to put the property in Plaintiff’s name as soon as Plaintiff could. (Cervantes Decl., ¶4.) However, Plaintiff does not state that he could keep that promise and obtain his own financing for the property. Plaintiff states that he paid the mortgage while he lived in the home, but he did not live in the home from 2015 to 2020 and from 2025 to present day.

Defendant states that Plaintiff “was permitted to occupy the property as a family member” and paid the mortgage in lieu of paying rent. (Aldama Decl., ¶10.) Defendant states that Plaintiff voluntarily moved out of the property more than two years ago, and another family member has occupied the property since then under the same arrangement, paying the mortgage directly to the lender. (Aldama Decl., ¶11.) Defendant also states that Plaintiff has not paid the taxes, insurance, or repairs since he moved out. (Aldama Decl., ¶13.) Defendant further states that improvements “were funded by the record owners,” i.e., Defendant and her husband, “including insurance proceeds received for covered losses,” but Defendant does not specify what those improvements were or how they compare to Plaintiff’s alleged improvements. (Aldama Decl., ¶14.)

Plaintiff concedes that he did not live in the house from 2015 to 2020 and from February 2025 to the present, and he only states that he paid the mortgage, taxes, insurance, and repairs while he lived in the house. Defendant presents evidence that other family members paid the mortgage under the same arrangement since Plaintiff moved out, and she and her husband paid for at least some improvements.

Plaintiff will have a high burden to show that his alleged equitable ownership overcomes Defendant’s legal ownership and, given that Plaintiff did not live in the home or pay the costs of ownership for more than six years of his alleged ownership, it does not appear Plaintiff can meet his burden of showing a probable validity of claim. (See Code Civ. Proc., § 405.32.)

Constructive Trust – Although not discussed by the parties, constructive trusts generally are defined by Civil Code sections 2223 and 2224. “One who gains a thing by fraud, accident, mistake, undue influence, the violation of a trust, or other wrongful act, is, unless he or she has some other and better right thereto, an involuntary trustee of the thing gained, for the benefit of the person who would otherwise have had it.” (Civ. Code, § 2224.) “A constructive trust is an involuntary equitable trust created by operation of law. The essence of the theory of constructive trust is to prevent unjust enrichment and to prevent a person from taking advantage of his or her own wrongdoing.” (*Campbell v. Superior Court* (2005) 132 Cal.App.4th 904, 920.) “[A] constructive trust may only be imposed where the following three conditions are satisfied: (1) the existence of a res (property or some interest in property); (2) the right of a complaining party to that res; and (3) some wrongful acquisition or detention of the res by another party who is not entitled to it.” (*Campbell*, supra, 132 Cal.App.4th at p. 920.)

Like in the quiet title cause of action, Plaintiff must show that he has a right to the property and Defendant is not entitled to it. For the reasons discussed above, it does not appear that Plaintiff can meet his burden of showing a probable validity of claim.

16. *Sanchez v. Silva, et al*, Case No. CIVSB2406108
Motion for Leave to File Third Amended Complaint
8/31/26, 9:00 a.m., Dept. S-17

Tentative Rulings

The Court is inclined to **GRANT** this unopposed motion for leave to file a Third Amended Complaint (TAC). Plaintiff will have twenty days’ leave to file the TAC.